

Form 223

for use in the Province of Ontario

BETWEEN:

BUYER:
(Full legal names of all Buyers)

AND

SELLER:
(Full legal names of all Sellers)

with respect to:

REAL PROPERTY:

Address (Property)

IN CONSIDERATION OF AN OFFER made with respect to the Real Property set out above, the parties hereto agree as follows:

1. The Seller agrees to pay the Brokerage (Brokerage)
(Name of Brokerage)

a commission of % of the sale price of the Property or
(Commission)

All amounts set out as commission are to be paid plus applicable taxes on such commission.

2. Any deposit in respect of any agreement where the transaction has been completed shall first be applied to reduce the commission payable. Should such amounts paid to the Brokerage from the deposit not be sufficient, the Seller shall irrevocably direct their lawyer to pay to the Brokerage on demand, any deficiency in commission and taxes owing on such commission.

3. The Commission noted above shall be paid as follows:

If any deposit in respect of any agreement is not sufficient to pay the entire commission as set out in 1. above, the parties hereto agree to insert the following provision into any Agreement of Purchase and Sale between the parties:

The Seller's lawyer is irrevocably directed to pay to the Brokerage:

.....
(Name of Brokerage)

the unpaid balance of the entire commission to which the Seller agreed together with applicable Harmonized Sales Tax (and any other taxes as may hereafter be applicable), or such other amount as both the parties hereto shall in writing direct from the proceeds of the sale prior to any payment to the undersigned Seller on completion as advised by the Brokerage and for so doing this shall be the Seller's lawyer full and sufficient authority. The amount prescribed above shall be paid forthwith after completion of this transaction.

4. Provided further that should such amounts paid to the Brokerage from the deposit or by the Seller's lawyer not be sufficient, the Seller shall be liable to pay to the Brokerage on demand, any deficiency in commission and taxes owing on such commission.

5. The Seller further agrees to pay such commission as calculated above even if the transaction contemplated by an agreement to purchase agreed to or accepted by the Seller or anyone on the Seller's behalf is not completed, if such non-completion is owing or attributable to the Seller's default or neglect, said commission to be payable on the date set for completion of the purchase of the Property.

6. The heirs, executors, administrators, successors and assigns of the undersigned are bound by the terms herein.

SIGNED, SEALED AND DELIVERED in the presence of:

IN WITNESS whereof I have hereunto set my hand and seal:

.....
(Witness)

.....
(Buyer)

.....
(Seal)

.....
(Date)

.....
(Witness)

.....
(Buyer)

.....
(Seal)

.....
(Date)

SIGNED, SEALED AND DELIVERED in the presence of:

IN WITNESS whereof I have hereunto set my hand and seal:

.....
(Witness)

.....
(Seller)

.....
(Seal)

.....
(Date)

.....
(Witness)

.....
(Seller)

.....
(Seal)

.....
(Date)